

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Henry Buren	Team: Squad #05	CCRB Case #: 202406191	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/06/2024 6:10 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/6/2025	Precinct: 44		
Date/Time CV Reported Thu, 06/06/2024 7:12 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/21/2024 11:03 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Namel Holguin	03109	960674	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Raynni Reyes	19385	959928	WARRSEC
2. SGT Robert Warkenthien	01610	953558	WARRSEC
3. PO Frank Gashi	06497	955942	WARRSEC

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Namel Holguin	Abuse: Police Officer Namel Holguin threatened to damage § 87(2)(b) property.	A . Substantiated
B . PO Namel Holguin	Abuse: Police Officer Namel Holguin entered § 87(2)(b) in the Bronx.	B . Substantiated
C . PO Namel Holguin	Abuse: Police Officer Namel Holguin searched § 87(2)(b) in the Bronx.	C . Substantiated
D . PO Namel Holguin	Abuse: Police Officer Namel Holguin failed to activate his body-worn camera.	D . Substantiated
E . PO Namel Holguin	Abuse: Police Officer Namel Holguin failed to provide § 87(2)(b) with a business card.	E . Substantiated

Case Summary

On June 6, 2024, § 87(2)(b) filed this complaint with IAB, generating original log § 87(2)(b). The CCRB received this complaint on June 21, 2024.

On June 6, 2024, at approximately 6:10 p.m., at § 87(2)(b) in the Bronx, PO Namel Holguin of the Bronx Warrant Squad threatened to damage § 87(2)(b) apartment door (**Allegation A: Abuse of Authority, substantiated**). PO Holguin entered and searched § 87(2)(b) apartment (**Allegations B-C: Abuse of Authority, substantiated**). PO Holguin failed to activate his BWC and failed to provide his business card to § 87(2)(b) (**Allegation D-E: Abuse of Authority, substantiated**). No arrest or summons resulted from this incident.

The investigation obtained BWC footage of the incident (Board Review 01-04, summarized at Board Review 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Namel Holguin threatened to damage § 87(2)(b) property.

Allegation (B) Abuse of Authority: Police Officer Namel Holguin entered § 87(2)(b) in the Bronx.

Allegation (C) Abuse of Authority: Police Officer Namel Holguin searched § 87(2)(b) in the Bronx.

PO Holguin did not activate his BWC until after he was already inside § 87(2)(b) apartment, and thus there is no video footage capturing the initial portion of the incident.

It is undisputed that PO Holguin was at § 87(2)(b) apartment because he was trying to locate § 87(2)(b) for whom he had an active bench warrant. The warrant listed § 87(2)(b) address as § 87(2)(b). It is also undisputed that, while speaking with § 87(2)(b) through her door, PO Holguin told § 87(2)(b) that he would break down the door. After § 87(2)(b) opened the door, PO Holguin immediately placed his foot across the threshold into § 87(2)(b) apartment, physically preventing her from closing the door. He asked § 87(2)(b) if § 87(2)(b) lived in the apartment and showed her a photograph of § 87(2)(b). § 87(2)(b) told PO Holguin that § 87(2)(b) did not live in the apartment. PO Holguin then walked through the apartment to search for § 87(2)(b). § 87(2)(b) was not in the apartment. PO Holguin is the subject officer of the entry and search allegations because he was lead investigator for this warrant and because he was the first officer to enter the apartment.

The investigation could not obtain a copy of § 87(2)(b) arrest warrant, as she had already been apprehended by the time the investigation requested it from the NYPD. PO Holguin's DD5s (Board Review 06) show that he was assigned the warrant for § 87(2)(b) on April 12, 2024. The next day he conducted a DAS LITE search, [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(e)].

On April 17, 2024, PO Holguin attempted to apprehend § 87(2)(b) at § 87(2)(b) (the address listed on the warrant). However, the address turned out to be an empty lot with no building. PO Holguin did not visit any other locations in search of § 87(2)(b) between that date and the date of this incident. On May 11, 2024, PO Holguin conducted a DAS check for § 87(2)(b) which resulted in "no new information." On May 28, 2024, he conducted a DAS check which also resulted in "no new information." There are no entries for additional TLO or DAS checks in the DD5s, and there is no entry which documents how PO Holguin found § 87(2)(b) address as a possible residence for

§ 87(2)(b) The DD5s show that PO Holguin did not conduct any DHS shelter checks until after he visited § 87(2)(b) apartment.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) The various arrest reports list a total of 14 addresses for § 87(2)(b) There is no arrest report more recent than 2009 which shows § 87(2)(b) residing at § 87(2)(b) address.

In his interview (Board Review 08), PO Holguin stated that he conducted a TLO check and a DAS check for § 87(2)(b) which indicated that her most recent address was § 87(2)(b) TLO is a database associated with various credit bureaus, and DAS is database of various NYPD documents, such as arrest reports, domestic incident reports, summonses, and UF-61 reports. In his DAS check, PO Holguin found 19 documents which listed § 87(2)(b) address as § 87(2)(b) PO Holguin explained that the DD5 entries for the TLO and DAS checks say “no new information” because he did not find the above address in those searches as they were basic searches. However, on a different date, PO Holguin conducted more thorough TLO and DAS checks, and those were the searches which showed § 87(2)(b) residing at § 87(2)(b) address. PO Holguin did not recall if he made DD5 entries for these searches. He did not perform any other searches which showed § 87(2)(b) residing at § 87(2)(b) address. Other than the address on the warrant and § 87(2)(b) address, PO Holguin was not aware of any other possible residence for § 87(2)(b) PO Holguin believed that § 87(2)(b) address was § 87(2)(b) residence because of the TLO and DAS search results, and because he ruled out the address on the warrant as a possible residence.

PO Holguin confirmed that he did not gather any information which led him to believe that § 87(2)(b) was present at § 87(2)(b) address at the time of the incident. When he arrived at § 87(2)(b) apartment, he told § 87(2)(b) through her closed apartment door that he was looking for an individual with a warrant, and he asked her to open her door so he could show her a photograph of the individual. § 87(2)(b) refused to open her door. She screamed that she knew her rights and that her boyfriend was a detective. PO Holguin heard a “commotion” inside the apartment which sounded like footsteps. Because § 87(2)(b) refused to open the door and because of the footsteps in the apartment, PO Holguin believed that § 87(2)(b) was inside the apartment, and that § 87(2)(b) was stalling for time so that § 87(2)(b) could find a place to hide. After asking § 87(2)(b) to open the door approximately 3-5 times, PO Holguin threatened to break the door down. PO Holguin believed that he had a sufficient basis for making forced entry because he had a warrant for § 87(2)(b) and he believed that § 87(2)(b) was inside the apartment. After § 87(2)(b) opened her door, PO Holguin placed his foot into her apartment to prevent her from closing the door. § 87(2)(b) appeared nervous while she spoke to PO Holguin because she was looking around her apartment. From the door, PO Holguin saw § 87(2)(b) daughter in the apartment. He believed that § 87(2)(b) daughter was not the one who caused the commotion that he heard through the door. He still believed that the footsteps were caused by § 87(2)(b) because § 87(2)(b) had refused to open the door and because she looked nervous. Believing § 87(2)(b) to be hiding in the apartment, PO Holguin then briefly walked through § 87(2)(b) apartment to look for § 87(2)(b)

Absent consent or exigent circumstances, officers may not make a warrantless entry into a premises in which an individual has a legitimate expectation of privacy. An arrest warrant founded on probable cause implicitly carries with it the limited authority to enter a dwelling, provided the officer has a sufficient basis for believing both that the dwelling is the suspect’s residence and that the suspect is inside the dwelling at the time of the entry. *Payton v. New York*, 445 U.S. 573 (1980)

(Board Review 09). Officers must give due respect to property and may only damage property if doing so is reasonably necessary to effectuate their duties. *Onderdonk v. State*, 170 Misc. 2d 155 (NY Ct. of Claims, 1996) (Board Review 10).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] The DD5s did not document how PO Holguin found § 87(2)(b) address and how he determined that it was § 87(2)(b) current residence. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED] As PO Holguin confirmed, a DAS search would show all of § 87(2)(b) prior arrest reports, and thus he would have seen both that there was no report more recent than 2009 which listed § 87(2)(b) address as § 87(2)(b) residence, and that there were other addresses listed as her residence on more recent arrest reports. Most crucially, § 87(2)(b) most recent arrest report, which occurred less than two months before PO Holguin began trying to locate § 87(2)(b) clearly indicated that she was homeless, yet PO Holguin did not perform any DHS shelter checks until after he visited § 87(2)(b) apartment.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegations A-C** be closed as **substantiated**.

Allegation (D) Abuse of Authority: Police Officer Namel Holguin failed to activate his body-worn camera.

Allegation (E) Abuse of Authority: Police Officer Namel Holguin failed to provide § 87(2)(b) with a business card.

In her interview (Board Review 11), § 87(2)(b) stated that PO Holguin did not offer his business card at the conclusion of this incident.

In PO Holguin's BWC footage (Board Review 01, starting at 00:35), PO Holguin does not activate his BWC when he speaks with § 87(2)(b) after she opens her door. She opens the door and they apparently converse briefly while he displays a copy of the warrant to her. He does not hold the warrant with two hands while displaying it. At 01:00, he activates his BWC as he begins searching § 87(2)(b) apartment, which is when the audio recording begins. At 01:53, PO Holguin asks § 87(2)(b) "Do you got what you need from us?" § 87(2)(b) replies, "Yeah, I got it. Bye." PO Holguin does not specifically ask § 87(2)(b) if she would like his business card.

PO Holguin stated that Warrant officers are trained to activate their BWCs when they make “face-to-face” contact with an individual living in the apartment, and thus they do not activate their BWCs when they first knock on the door. When asked to explain why he did not activate his BWC even after § 87(2)(b) opened the door, PO Holguin stated that both of his hands were preoccupied with showing § 87(2)(b) the photograph of § 87(2)(b).

With regard to offering a business card, PO Holguin stated that when he asked § 87(2)(b) “Do you got what you need from us,” he was asking § 87(2)(b) if she wanted his “information.” PO Holguin did not specifically offer a business card to § 87(2)(b) because he did not want to make § 87(2)(b) child uncomfortable by remaining in the apartment any longer.

Officers are to offer a business card at the conclusion of a home search. NYC Administrative Code § 14-174 (Board Review 12). Officers are to activate their BWC prior to engaging in any police action. Police action includes responding to calls for service, addressing quality of life conditions, handling pick-up assignments and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops, and Investigative Encounters. There is no special provision in the Patrol Guide regarding Warrants officers refraining from activating their BWCs until a resident has opened a door. NYPD Patrol Guide Procedure 212-123 (Board Review 13).

§ 87(2)(g)
It is therefore recommended that
Allegation D be closed as **substantiated**.

§ 87(2)(g)
PO Holguin § 87(2)(g)
vaguely asking § 87(2)(b) “Do you got what you need from us,” as he had no way of knowing whether § 87(2)(b) was even aware that officers carry business cards. § 87(2)(g)
It is therefore recommended **Allegation E** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 14).
- PO Holguin has been a member of the NYPD for nine years and has been a subject in two other CCRB complaints and 13 other allegations, of which one was substantiated:
 - 201701610 involved a substantiated premises entered and/or searched allegation against PO Holguin. The Board recommended Command Level Instructions and the NYPD imposed Formalized Training.
 - 202401226 is an ongoing investigation § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 30, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 15).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 5

Investigator:	<u>Henry Buren</u>	<u>Inv. Henry Buren</u>	<u>January 22, 2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Daniel Giansante</u>	<u>IM Daniel Giansante</u>	<u>January 27, 2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date